

The 17-Point Prenup Checklist

Work through it in order — disclosure, then terms, then execution. Skip a layer and you don't have a prenup; you have an expensive suggestion.

How to use this: each partner prints a copy. Tick every box together, in one sitting per layer. Anything you can't tick becomes this week's conversation — not next month's.

LAYER 1 · THE PART THAT KILLS PRENUPS WHEN SKIPPED

Disclosure

- ☐ **Full asset schedule — both partners.** Bank accounts, investments, retirement (401k/IRA/pensions), real estate, vehicles, valuable personal property, business interests, crypto.
- ☐ **Full debt schedule — both partners.** Student loans, credit cards, car loans, mortgages, business lines of credit, family loans.
- ☐ **Income documentation.** Recent pay stubs or tax returns — support calculations need real numbers.
- ☐ **Expected inheritances and trusts.** Even vague ones ("my parents' lake house eventually").
- ☐ **Everything attached as an exhibit.** Disclosure lives inside the agreement as signed schedules — not in an email.

Why this layer comes first: the #1 reason prenups get tossed is inadequate or hidden disclosure. A \$400,000 account discovered later doesn't just add to the fight — it can void the entire agreement.

LAYER 2 · WHAT THE DOCUMENT ACTUALLY DECIDES

The terms

- ☐ **Separate property defined** — what each of you brought in stays yours, and what *keeps* it separate (later inheritances, gifts, commingling rules).
- ☐ **Marital property defined** — how what you build together is divided. Be specific; vagueness = future fight.
- ☐ **The house.** The most-litigated asset: ownership, how mortgage payments affect it, what happens on sale.
- ☐ **Debts assigned** — who carries each premarital debt, how marital debt is handled.
- ☐ **Business protections** — ownership stays separate, how growth during marriage is treated, valuation method.
- ☐ **Spousal support terms** — caps, duration, or waiver, within your state's limits.

- ☐ **Retirement and pensions** — how accounts grown during marriage are treated; waiver language (QDRO) if applicable.
- ☐ **Life insurance** — obligation to maintain coverage naming the spouse: amounts and term.
- ☐ **Inheritance rights** — how the prenup interacts with your will and your state's elective-share laws.

BONUS · KIDS FROM A PREVIOUS MARRIAGE

Inheritance ring-fence: explicitly preserve your children's claims to premarital assets, the family home, or life insurance proceeds. This one line prevents the most common blended-family dispute.

LAYER 3 · WHERE CHEAP DOCUMENTS DIE

Execution

- ☐ **Both partners had the agreement in advance** — weeks, not the night before. Last-minute signing smells like duress in court.
- ☐ **Voluntary signing, documented** — no ambushes; separate counsel recommended (and effectively required in several states).
- ☐ **Correct formalities + signed before the wedding** — notarization and/or witnesses per your state's rules, before the ceremony, never after.

The "never include" list

- ✗ Child custody or child support terms — courts decide those, always
- ✗ Cheating penalties / morality clauses — unenforceable in most states
- ✗ Anything one partner never saw
- ✗ Terms that would leave one spouse destitute or on public assistance
- ✗ Hidden assets — the whole agreement can collapse

YOUR ORDER OF OPERATIONS THIS WEEK

1. Each of you lists assets and debts tonight — one hour, honestly.
2. Agree on the big four: house, business, support, inheritance.
3. [Check your state's cost range](#) — five seconds, no email.
4. Start 3–6 months before the wedding. Full cost breakdown: [How Much Does a Prenup Cost?](#)